Mr. Shahnawaz Khan vs Department Of School Education & ... on 11 March, 2010

CENTRAL INFORMATION COMMISSION
Club Building (Near Post Office)
Old JNU Campus, New Delhi - 110067
Tel: +91-11-26161796

Decision No. CIC/SG/A/2010/000219/711
Appeal No. CIC/SG/A/2010/00021

Relevant Facts emerging from the Appeal:

Appellant : Mr. Shahnawaz Khan
8, Kaptan Sahab Ki Baghia,
Ginnori, Bhopal, MP.

Respondent : Mr. I. P. S. Bakshi

PIO & Dy. Secy. to GOI Ministry of HRD Department of School Education & Literacy NLM-3 Section, Shastri Bhawan, Delhi-110001.

RTI application filed on	:	01/05/2009
PIO replied	:	26/05/2009
First appeal filed on	:	01/06/2009
First Appellate Authority order	:	Not ordered
Second Appeal filed on	:	29/07/2009
Second Appeal received on	:	20/08/2009

Sl.	Information Sought	Reply of the PIO
1.	Date-wise details of organizations which had submitted project proposals for sanctioning of new Jan Sikshan Sansthan (JSS) at Bhopal, in addition to the existing JSS and copy of the proposals.	Only one project proposal viz Ra Smiriti Gas Pidit Punarvas Kendr (NGO), Bhopal had submitted proj proposal for sanction of JSS at February, 2008. Copy of project consisting 115 proposal was give (enclosed).

2. Copies of note-sheet of the concerned file Copies of note-sheet of the concerned file mentioning the details of action taken on those (No. F.6-4/2008-AE.3) was given proposals from the date of submission of the (enclosed). proposals to till date.

3. Copy of the letters written by the department in Copy of the letter written to SRC for regard to opening new JSS. conducting feasibility study of the above mentioned NGO was given (enclosed).

4. Copy of the orders of the departments for opening Not replied.

new JSS (if approved) with copy of payment made to the organizations, list of centers opened by the organization till 30/04/2009, list of functioning centers, list of trained or being trained students and copy of bills of amount spent by the organization till 30/04/2009.

Ground of First Appeal:

Unsatisfactory and incomplete information received from the PIO. First Appellate Authority ordered:

Not ordered.

Ground of the Second Appeal:

Incomplete and unsatisfactory reply received from the PIO.

Relevant Facts emerging during Hearing:

The following were present Appellant : Mr. Shahnawaz Khan;

Respondent : Absent;

The Appellant was offered information of 121 pages and asked to pay an additional fee of Rs.242/-. He has not paid the additional fees since he states that the information being offered to him is incomplete. He has produced before the Commission information provided under RTI on 26/03/2009 to Mr. Tarun Guru, Manorama Typing, OLD MLB College, Naya Hamidiya College Road, Hathi Khana, Budhwara, Bhopal - 462001 in which information has been provided that a proposal has been received from RK Education and Welfare Society on 20/01/2009 which is under consideration. The Appellant states that thus it proves that incomplete information has been offered to him. Based on this contention of the Appellant since the respondent has not contradicted this it appears that primafacie the Appellant's contention may be true and that incomplete information was offered to him.

Decision:

The Appeal is allowed.

The PIO is directed to provide the complete information to the Appellant free of cost before 30 March 2010.

The issue before the Commission is of not supplying the complete, required information by the PIO Mr. I. P. S. Bakshi within 30 days as required by the law. From the facts before the Commission it is apparent that the PIO is guilty of not furnishing information within the time specified under sub-section (1) of Section 7 by

not replying within 30 days, as per the requirement of the RTI Act.

It appears that the PIO's actions attract the penal provisions of Section 20 (1). A showcause notice is being issued to him, and he is directed give his reasons to the Commission to show cause why penalty should not be levied on him.

Mr. I. P. S. Bakshi will present himself before the Commission at the above address on 19 April 2010 at 11.00am alongwith his written submissions showing cause why penalty should not be imposed on him as mandated under Section 20 (1). He will also submit proof of having given the information to the appellant.

If there are other persons responsible for the delay in providing the information to the Appellant the PIO is directed to inform such persons of the show cause hearing and direct them to appear before the Commission with him.

This decision is announced in open chamber. Notice of this decision be given free of cost to the parties. Any information in compliance with this Order will be provided free of cost as per Section 7(6) of RTI Act.

Shailesh Gandhi Information Commissioner 11 March 2010 (In any correspondence on this decision, mention the complete decision number.)(GJ)